UNITED STATES DISTRICT COURT

SOUTHERN DISTRICT OF CALIFORNIA

BENNIE DIXON,

Petitioner,

v.

ROBERT J. HERNANDEZ, Warden,

Respondent.

Civil No. 07cv1990 JM (AJB)

ORDER:

(1) DISMISSING CASE AS DUPLICATIVE [Doc. No. 1] and

(2) DENYING IN FORMA PAUPERIS APPLICATION AS MOOT [Doc. No. 2].

On October 12, 2007, Petitioner, a state prisoner proceeding pro se, filed a Petition for Writ of Habeas Corpus and a Motion to Proceed In Forma Pauperis. Upon review of the Petition, the Court notes that the present petition is identical to the petition Petitioner filed on September 21, 2007, in Dixon v. Hernandez, S.D. Cal. Civil Case Number 07cv1860 BEN (WMc). The Court may dismiss a duplicative petition as frivolous if it "merely repeats pending or previously litigated claims." Cato v. United States, 70 F.3d 1103, 1105 n.2 (9th Cir. 1995) (citations omitted). Here, Petitioner has filed two identical petitions with this Court.

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Accordingly, the Court **DISMISSES** this case because the Petition in this case is duplicative of that filed in Dixon v. Hernandez, S.D. Cal. Civil Case Number 07cv1860 BEN (WMc). In light of the above, the Court further **DENIES** Petitioner's application to proceed in forma pauperis as moot. [Doc. No. 2.] The Clerk shall close the file.

IT IS SO ORDERED.

DATED: November 1, 2007

Hon. Jeffrey T. Miller
United States District Judge